

“Substitutions”). Both Helio Dimas and Susana Dimas are now representing themselves in pro per.

Analysis

The Motions to be Relieved as Counsel are unopposed.

Disposition

The Court finds and rules as follows:

1. The Motions to be Relieved as Counsel are DROPPED from calendar as moot in light of the Substitutions.
2. The Court shall issue the order after hearing.

4. 9:00 AM CASE NUMBER: C24-03337
CASE NAME: MARICRUZ DIMAS-MARTINEZ VS. HELIO DIMAS
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: JOSEPH A. LEPERA**
FILED BY: DIMAS, SUSANA
TENTATIVE RULING:

See LINE 3 above.

5. 9:00 AM CASE NUMBER: C25-01397
CASE NAME: ROBERT RODRIGUEZ VS. SIMONA ZAKHEIM
***HEARING ON MOTION IN RE: STRIKE THE WHOLE OF SIMONA YANA S. ZAKHEIM AND HYDEN ZAKHEIM, LLP'S DEFECTIVE DEMURRER TO FIRST AMENDED COMPLAINT**
FILED BY: RODRIGUEZ, ROBERT D.
TENTATIVE RULING:

Withdrawn by the moving party's Notice of Withdrawal filed April 13, 2026. Accordingly, the motion is DROPPED from calendar.

6. 9:00 AM CASE NUMBER: C25-01728
CASE NAME: JOHN DOE VS. JOSEPH MARTIN
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: MOUNT DIABLO UNIFIED SCHOOL DISTRICT
TENTATIVE RULING:

Defendant Mount Diablo Unified School District (“Defendant”) brings this demurrer to the complaint (“Complaint”) of plaintiff John JB Doe (“Plaintiff”). Defendant challenges Plaintiff’s second cause of action for sexual harassment pursuant to Civil Code sections 51.9 and 52, and third cause of action for negligent failure to warn, train, or educate students.

For the reasons discussed below, Defendant’s demurrer is **SUSTAINED** as to the second cause of action for sexual harassment pursuant to Civil Code sections 51.9 and 52, and third cause of action for

negligent failure to warn, train, or educate students, with leave to amend.

Meet and Confer

The meet and confer requirement has been satisfied. (Madison M. Simmons Decl., ¶¶ 2-3, Exhs. A & B; Code Civ. Proc., § 430.41, subd. (a)(3)(B).)

Legal Standard for Demurrer

In ruling on a demurrer, a court must treat as true all properly pleaded material facts contained in the complaint, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) “We also accept as true facts which may be inferred from those expressly alleged.” (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1405.) A demurrer challenges “the sufficiency of the allegations in a complaint as a matter of law,” not the truth of the factual allegations in the pleading or the pleader’s ability to prove those allegations. (*Id.*, at pp. 1404-1405.)

Questions of fact cannot be decided on demurrer. (*Berryman v. Merit Prop. Mgmt., Inc.* (2007) 152 Cal.App.4th 1544, 1556.) Because a demurrer tests only the sufficiency of the complaint, a “court will not consider facts which have not been alleged in the complaint unless they may be reasonably inferred from the matters which have been pled or are proper subjects of judicial notice.” (*Hall v. Great W. Bank* (1991) 231 Cal.App.3d 713, 718, fn.7.) “[A]t the demurrer stage the complaint must be construed in the light most favorable to the plaintiff.” (*Wilson v. Houston Funeral Home* (1996) 42 Cal.App.4th 1124, 1138.)

“Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.) “However, leave to amend should not be granted where, in all probability, amendment would be futile.” (*Foroudi v. The Aerospace Corp.* (2020) 57 Cal.App.5th 992, 1000 [citations and internal quotes omitted].)

Background: Facts Alleged in Complaint

Plaintiff filed the instant Complaint in this matter on June 16, 2025. The Complaint alleges four causes of action arising from the alleged sexual assault and harassment of Plaintiff, when he was a minor, by defendant Joseph Andrew Martin (“Martin”), who was Plaintiff’s fourth grade teacher at Woodside Elementary School, within the area of Mount Diablo Unified School District. (Complaint, ¶¶ 1-34.) Plaintiff asserts claims against Defendant and Martin for: (1) negligent hiring, retention & supervision; (2) sexual harassment pursuant to Civil Code sections 51.9 and 52; (3) negligent failure to warn, train, or educate students; and (4) negligent supervision of a minor. (*Id.*, at ¶¶ 35-66.)

Discussion

Sexual Harassment (Civil Code §§ 51.9, 52.)

Defendant argues that this cause of action is improper because the school district employer cannot be vicariously liable for the alleged sexual harassment and that the Unruh Act does not apply to the kind of entity it is. (Demurrer MPA, pp. 2-4.) Plaintiff does not oppose this portion of Defendant’s

demurrer and states that upon being granted leave to amend Plaintiff will withdraw this cause of action against Defendant. (Opposition, p. 4:17-23.)

In light of this, Defendant's demurrer to Plaintiff's second cause of action for sexual harassment pursuant to Civil Code sections 51.9 and 52, is **SUSTAINED** with leave to amend.

Negligent Training or Education of Students

In this claim, Plaintiff alleges that Defendant had a duty to warn, train, and educate students in its custody, care, and control, of known or knowable dangers posed by faculty and staff. (Complaint, ¶ 53.) Plaintiff alleges that Defendant breached that duty, which resulted in Plaintiff being groomed, manipulated, and sexually assaulted and caused him to suffer damages. (*Id.*, at ¶¶ 54-58.)

Defendant argues that Plaintiff's third cause of action for negligent training or education of students fails due to there being no private right of action for a claimed negligent failure to educate or train. Defendant cites *Peter W. v. San Francisco Unified Sch. Dist.* (1976) 60 Cal.App.3d 814, and *Chevlin v. L.A. Cmty. College Dist.* (1989) 212 Cal.App.3d 382, as authority for its position. (Demurrer MPA, p. 4:8-20.) Defendant also argues that a public entity can only be held liable when it is under a mandatory duty imposed by legislative enactment, and that even then, discretionary immunity may apply as to decisions relating to the specific curriculum. (*Id.*, at pp. 4-5; Gov. Code, §§ 815.6, 820.2.)

Plaintiff argues that "just as the school district may be held vicariously liable for the negligence of administrators or supervisors in hiring, supervising, and retaining a school employee who sexually harasses and abuses a student, so too it may be held vicariously liable for the negligence of administrators' or supervisors' failure to warn, train, or educate the students in its custody, care, and control of the risks of harm posed by faculty and staff." (Opposition, p. 5.) Plaintiff cites *C.A. v. William S. Hart Union High School District* (2012) 53 Cal.4th 861, 878, as authority for this. (*Ibid.*)

Plaintiff further argues that Defendant has a special relationship with students that gives rise to Defendant's duty to warn and protect students from potential harm, which arises from *Regents of University of California v. Superior Court* (2018) 4 Cal.5th 607. (Opposition, pp. 6-8.) Plaintiff argues that mandatory duties to protect students from sexual abuse exist. (*Id.*, at pp. 8-9.) Plaintiff cites to Education Code section 44807 and the California Constitution, Article 1, section 28, subd. (a)(7) as being bases for the mandatory duty. (*Id.*, at p. 8.) Plaintiff asserts "While some curriculum decisions may involve discretion, the duty to protect students from physical harm and sexual abuse does not. A school district's obligation to take reasonable steps to prevent harm to students in its custody, care, and control is a mandatory operational duty, not a discretionary policy decision." (*Ibid.*) Finally, Plaintiff argues that discretionary immunity does not shield Defendant from liability "for operational failures to protect students from known dangers." (*Id.*, at p. 9.)

On reply, Defendant argues that despite Plaintiff's attempt to distinguish the *Peter W.* and *Chevlin* cases, they still apply due to the basis of their holdings—a claimed failure to educate a student is not permissible. (Reply, p. 2.) Defendant points out that Plaintiff's failure to warn argument is based on an allegation that Defendant knew or should have known of the risk posed by defendant Martin based on a 2006 internal investigation that flagged him as a potential risk. (Reply, pp. 2-3.)

The California Supreme Court has summarized how public entity liability may or may not be established:

Under the Government Claims Act (Gov. Code, § 810 et seq.), a public entity is not liable “[e]xcept as otherwise provided by statute.” (Gov. Code, § 815; see *Hoff v. Vacaville Unified School Dist.* (1998) 19 Cal.4th 925, 932 [80 Cal. Rptr. 2d 811, 968 P.2d 522].) If the Legislature has not created a statutory basis for it, there is no government tort liability. (*Hoff*, at p. 932.)

(*State ex rel. Dept. of California Highway Patrol v. Superior Court* (2015) 60 Cal.4th 1002, 1009.)

The Court finds that Plaintiff has not stated a claim with respect to holding Defendant liable for failure to warn, train, or educate the students at Woodside Elementary school about its sexual harassment policy and inappropriate boundary crossing with students. Plaintiff’s argument in support of the failure to warn is based on a 2006 internal investigation that took place 6-7 years after the alleged sexual misconduct. (Opposition, pp. 7:22-8:4.) Plaintiff cites Education Code section 51934, subdivision (a)(10), to argue that “the California Education Code codified the long-standing expectation that schools teach students in grades seven (7) through twelve (12) comprehensive sexual health with a curriculum including ‘information about sexual harassment, sexual assault, sexual abuse, and human trafficking...’ ” (Opposition, p. 6.:24-27.) However, Plaintiff was in the fourth grade, so the requirement to educate seventh to twelfth graders on sexual topics explicitly cuts against Plaintiff’s assertion that Defendant breached a duty “to inform and educate [Plaintiff] on their sexual harassment policies and the methods to identify, report and respond to in appropriate sexual harassment and abuse by teachers. . .” (Complaint, ¶¶ 4, 54.)

Further, Education Code section 44807 provides that:

Every teacher in the public schools shall hold pupils to a strict account for their conduct on the way to and from school, on the playgrounds, or during recess. A teacher, vice principal, principal, or any other certificated employee of a school district, shall not be subject to criminal prosecution or criminal penalties for the exercise, during the performance of his duties, of the same degree of physical control over a pupil that a parent would be legally privileged to exercise but which in no event shall exceed the amount of physical control reasonably necessary to maintain order, protect property, or protect the health and safety of pupils, or to maintain proper and appropriate conditions conducive to learning. The provisions of this section are in addition to and do not supersede the provisions of Section 49000.

This does not support the view that Defendant had a duty to educate Plaintiff on sexual harassment policies when he was in fourth grade in 1999-2000. The California Constitution, Article 1, section 28, subd. (a)(7), provides:

Finally, the People find and declare that the right to public safety extends to public and private primary, elementary, junior high, and senior high school, and community college, California State University, University of

California, and private college and university campuses, where students and staff have the right to be safe and secure in their persons.

This too does not support the view that Defendant had a duty to educate Plaintiff on sexual harassment policies when he was in fourth grade in 1999-2000.

Defendants' demurrer to Plaintiffs' third cause of action for negligent failure to warn, train, or educate students is **SUSTAINED** with leave to amend.

Ruling on the Demurrer

The Court **SUSTAINS** Defendant's demurrer to the second cause of action for sexual harassment pursuant to Civil Code sections 51.9 and 52, and the third cause of action for negligent failure to warn, train, or educate students, with leave to amend. Plaintiffs may file and serve an amended complaint within 10 days of notice of entry of this order. (Code Civ. Proc. § 472b; CRC, rule 3.1320(g).)

7. 9:00 AM CASE NUMBER: C25-01728

CASE NAME: JOHN DOE VS. JOSEPH MARTIN

***HEARING ON MOTION IN RE: STRIKE ALLEGATIONS IN PLAINTIFF'S COMPLAINT**

FILED BY: MOUNT DIABLO UNIFIED SCHOOL DISTRICT

TENTATIVE RULING:

Before the Court is a motion to strike filed by defendant Mount Diablo Unified School District ("Defendant"), which seeks to strike paragraphs 43, 50, 57, 65 of the complaint ("Complaint") filed by plaintiff John JB Doe ("Plaintiff").

For the reasons set forth below, Defendant's motion to strike paragraphs 43, 50, 57, and 65, of the Complaint is **GRANTED**, with leave to amend.

Meet and Confer

The meet and confer requirement has been satisfied. (Madison M. Simmons Decl., ¶¶ 2-3, Exhs. A & B; Code Civ. Proc., § 435.5, subd. (a)(3)(B).)

Background

Plaintiff filed the instant Complaint in this matter on June 16, 2025. The Complaint alleges four causes of action arising from the alleged sexual assault and harassment of Plaintiff, when he was a minor, by defendant Joseph Andrew Martin ("Martin"), who was Plaintiff's fourth grade teacher at Woodside Elementary School, within the area of Mount Diablo Unified School District. (Complaint, ¶¶ 1-34.) Plaintiff asserts claims against Defendant and Martin for: (1) negligent hiring, retention & supervision; (2) sexual harassment pursuant to Civil Code sections 51.9 and 52; (3) negligent failure to warn, train, or educate students; and (4) negligent supervision of a minor. (*Id.*, at ¶¶ 35-66.)